

The Court will issue an Order to Show Cause to the Personal Representative and counsel as to why monetary sanctions in the sum of \$250.00 should not be imposed for failure to timely file the Inventory and Appraisal, failure to timely close the estate administration, and failure to file a Status Report, as ordered April 7, 2025. The hearing on the Order to Show Cause is set for **Monday, October 6, 2025, at 2:30 p.m. in Department 44.** The clerk is directed to prepare a separate Order to Show Cause. **No appearance is necessary on today's calendar.**

ESTATE OF CLIFFORD WARD

Case Number: 24PB-0032745

This matter is on calendar for further proceedings on the second amended Petition for Probate of Will. The matter was previously continued to allow Petitioner cure defects in the Petition and give proper notice of the proceedings. A third amended Petition has been filed and noticed for August 11, 2025. That date is confirmed. **No appearance is necessary on today's calendar.**

ESTATE OF CHERYLE WILSON

Case Number: 23PB-0032010

This matter is on calendar for Status of Administration. A Petition for Final Distribution has still not been filed. A Status Report has been filed seeking to continue this hearing for six months to allow for the sale of real property. The matter is continued to **Monday, January 5, 2026, at 2:30 p.m. in Department 44** for further proceedings regarding Status of Administration. **No appearance is necessary on today's calendar.**

ESTATE OF RICHARD WOULFE

Case Number: 24PB-0032671

This matter is on calendar for hearing on the First and Final Account Report of Administrator and Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that nothing has been filed indicating compliance with Probate Code § 9202(b) and (c). The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner is required to file a supplemental declaration addressing Probate Code § 9202(b) and (c). **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: BETTY RUTHERFORD REVOCABLE TRUST

Case Number: 25PB-0032907

This matter is on calendar for further proceedings on the Petition for Confirmation of Assets. The Court previously continued the matter to allow Petitioner to submit additional information to show the Trustor had a present intent to hold the subject property in the name of the Trust. Nothing has been submitted. The basis for the Petition is that, because the Trustor executed a pour-over will, she had a present intent to hold the subject property in the name of the Trust. This is insufficient. A pour-over will indicates an intent that any property not held in Trust at time of death be devised to the Trust after death. A pour-over will does not support a present intent to hold the subject property in the name of the Trust during the decedent's lifetime. No other evidence was provided to show the decedent had a present intent to hold the subject property in Trust while she was living. The Petition is **DENIED** without prejudice. The clerk is instructed to close the file. **No appearance is necessary on today's calendar.**

IN RE: DAVID P. FRASE TRUST OF 2000

Case Number: 25PB-0032977

This matter is on calendar for hearing on a Petition to Amend Irrevocable Trust to Appoint Successor Trustee. The matter has not been properly noticed. There is no proof of service of the Notice of Hearing and Petition on beneficiaries Diane Seyranian Frase, Robert Seyranian, or the Trustee of the David P. Frase Land Trust. The Court notes five (5) of the beneficiaries have consented to Petitioner's appointment as Successor Trustee.

Section 6.02 of the Trust provides the method for appointing a Successor Trustee. Pursuant to the Trust, any Trustee can appoint a Successor by delivering a signed writing to the person designated as Successor. The Petition indicates the current Trustee, John Grimes, has resigned. While the Petition attaches an agreement for Mr. Grimes to take over as Successor Trustee, any evidence of his resignation is notably absent. Additionally, the Petition fails to address whether Mr. Grimes has neglected to appoint a Successor. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. Petitioner is **ORDERED** to serve and file a new Notice of Hearing on the parties identified for the continued hearing date. An Amended Petition or supplemental declaration is required providing information on the issues raised above if Petitioner wishes to move forward with his request. **Notice is preserved. No appearance is necessary on today's calendar.**

IN RE: MARY JANE DAL MOLIN REVOCABLE TRUST

Case Number: 24PB-0032338

This matter is on calendar for further proceedings regarding status of trust property and status of accounting. Nothing has been filed to provide the Court with an update. **An appearance is necessary on today's calendar to discuss the status.**

IN RE: MAZZINI FAMILY TRUST, DATED FEBRUARY 27, 2003

Case Number: 24PB-0032717

This matter is on calendar for further proceedings on a Petition to Recover Trust Property. The Court previously continued the matter at request of counsel to resolve issues regarding service. **An appearance is necessary on today's calendar for status of service, further proceedings, and setting a contested hearing.**